agency, if qualified, on application, shall be recognized in lieu of the lessee. If in making a sale the lending agency takes back a mortgage on the property, the agency shall be entitled to the same consideration as in the case of the original loan.

(d) Where a lending agency files notice that it has made a loan and has accepted a grazing lease as security therefor, in conformity with the provisions of this section, such agency will be advised of any action taken affecting the lease.

§ 160.21 *Appeals.* An appeal may be taken from any decision of the Director to the Secretary, pursuant to the rules of practice, 43 CFR, Part 221.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 20, 1947.

[F. R. Doc. 47-9479; Filed, Oct. 23, 1947; 8:45 a. m.]

PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS

IDAHO GRAZING DISTRICT NO. 1

CROSS REFERENCE: For order affecting the tabulation contained in § 162.1, see Federal Register Document 47-9489 under Department of the Interior, Bureau of Reclamation, in the Notices section, *infra*, modifying Departmental Order of April 8, 1935, which established Idaho Grazing District No. 1.

Appendix—Public Land Orders

[Public Land Order 415]

SOUTH DAKOTA

REVOKING EXECUTIVE ORDERS NOS. 1452 AND 2522 OF JANUARY 2, 1912, AND JANUARY 30, 1917

Correction

In F. R. Doc. 47-9352 appearing on page 6831 of the issue for Saturday, October 18, 1947, the following changes are made:

1. In the third line, the date should read "June 25, 1910."

2. The next to the last paragraph should read:

Inquiries concerning these lands shall be addressed to the District Land Office at Pierre, South Dakota.

[Public Land Order 418]

COLORADO

MODIFYING PUBLIC LAND ORDER 13 TO PERMIT ISSUANCE OF OIL AND GAS LEASES FOR LANDS AND MINERAL DEPOSITS WITHDRAWN THEREBY

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Public Land Order No. 13 of July 21, 1942 withdrawing certain public lands, together with the mineral deposits owned by the United States in certain patented lands, from all forms of appropriation under the public land laws, including the mineral laws, and reserving them for use of the Department of the Interior in connection with the prosecution of the war, is hereby modified to permit the issuance of oil and gas leases for such lands and mineral deposits under the act of February 25, 1920, 41 Stat. 437, as amended (30 U. S. C. 181). All leases so issued shall contain such stipulations as have been or may be required by the Secretary of the Interior, for the protection of the helium deposits in the lands.

This order shall not become effective to change the status of such lands until 10:00 a. m. on December 16, 1947. At that time the lands outside of the known geologic structure of the producing field shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to noncompetitive oil and gas lease application. Application by the general public may be presented during the 20-day period from November 27, 1947 to December 16, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on December 16, 1947, shall be treated as simultaneously filed.

Applications for leases on these lands, which shall be filed in the District Land Office in Pueblo, Colorado, shall be governed by the regulations contained in §§ 191.10 and 192.42 of Title 43 of the Code of Federal Regulations (Circulars 1623 and 1624 October 28, 1946).

Inquiries concerning these lands shall be addressed to Manager, District Land Office, Pueblo, Colorado.

The lands affected by this order are described as follows:

SIXTH PRINCIPAL MERIDIAN

T. 29 S., R. 60 W.
T. 30 S., R. 60 W.

The areas described, including both public and non-public lands, aggregate 46,123.73 acres.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 14, 1947.

[F. R. Doc. 47-9478; Filed, Oct. 23, 1947; 8:45 a. m.]

Chapter II—Bureau of Reclamation, Department of the Interior

PART 401—APPLICATIONS FOR ENTRY ON PUBLIC LANDS AND WATER RENTAL

KLAMATH PROJECT, OREGON-CALIFORNIA; TULE LAKE DIVISION

CROSS REFERENCE: For public notice opening public lands to entry and announcing availability of water in the Klamath Project, Oregon-California, Tule Lake Division, see Federal Register Document 47-9488 under Department of the Interior, Bureau of Reclamation, in the Notices section, *infra*.

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 552, Amdt. 1]

PART 95—CAR SERVICE

CONTROL TIDEWATER COAL; APPOINTMENT OF AGENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 16th day of October A. D. 1947.

Upon further consideration of Revised Service Order No. 552 (12 F. R. 5670), and good cause appearing therefor; it is ordered, that:

Section 95.552 *Control tidewater coal; appointment of agent,* of Service Order No. 552, be, and it is hereby further amended by substituting the following paragraph (h) for paragraph (h) thereof:

(h) *Expiration date.* This section shall expire at 11:59 p. m., November 20, 1948, unless otherwise modified, changed, suspended or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 12:01 a. m., October 20, 1947; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 1, 24 Stat. 379, as amended, 40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)-(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 47-9483; Filed, Oct. 23, 1947; 8:46 a. m.]

[S. O. 782]

PART 95—CAR SERVICE

MCKINNEY GRAIN CO.; EMBARGO

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 20th day of October A. D. 1947.

It appearing, that the McKinney Grain Company, McKinney, Texas, on or about July 21, 1947, shipped NKP 17383 loaded with 24,100 pounds of Johnson Grass Hay; that since that time said car has been diverted ten times after which it arrived Skidmore, Texas, on October 10, 1947 after having been diverted in a circle of approximately 3,000 miles within the State of Texas and held under load 82 days.

It further appearing, that the McKinney Grain Company for a long period of